

TENTATIVE RULING

Case: **Matter of Hemly**
 Case No. PR2026-0020

Hearing Date: **March 5, 2026** **Department Eleven** **9:00 a.m.**

The petitioner, Sarah Hemly, and the minors, James Buckman Hemly and Robert Wallace Hemly, are **DIRECTED TO APPEAR** (in person or by Zoom). (Cal. Rules of Court, rule 7.952; YCR 2.4.) If the parties fail to appear at the hearing and the Court has not excused their personal appearance, the petition will be denied without prejudice. No request for a hearing is required.

TENTATIVE RULING

Case: **Kalmykov v. Shell Point Mortgage Servicing et al.**
Case No. CV2023-0547

Hearing Date: **March 5, 2026** **Department Eleven** **9:00 a.m.**

Defendant The Mortgage Law Firm, PLC's motion for summary judgment is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) The Court finds that defendant has not shown that its [second] motion for summary judgment is based on newly discovered facts or circumstances or a change of law; thus, is precluded by statute. (Code Civ. Proc., § 437c, subd. (f)(2); *Bagley v. TRW, Inc.* (1999) 73 Cal.App.4th 1092, 1096 - 1097.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.